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Assignment #1

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Assignment #1: Professional Ethics Scenario

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Introduction

“As part of your responsibilities, you oversee the installation of software packages for large orders. A recent order of laptops for a local school district requires webcam software to be loaded. You know that this software allows for remote activation of the webcam.”

Immediately, the concern or conflict of ethics in this scenario is about privacy. Because this software would allow remote activation the concern is with which kind consumer could this breach their privacy with. In addition, with the responsibility to oversee such installations on a large scale administrative and/or contractual options would have to be sorted. For instance, depending on consumer use, hackers or other violators can utilize the camera to spy through individuals' webcam. Preventive measures would require a discussion on policy and privacy agreements with faculty.

Additionally, the legal problem is breaking of privacy laws or policies from the Privacy Act of 1974 that states, “The Privacy Act prohibits the disclosure of a record about an individual from a system of records absent the written consent of the individual, unless the disclosure is pursuant to one of twelve statutory exceptions” according to the U.S. Department of Justice Privacy Act of 1974 page. The definition of a “record” includes any information about a person that can be identifiable or “that an agency might maintain about a person”. In having software that can remotely access the camera of students and faculty this can easily be an issue for administrators of this software with the correct credentials, system permissions or system exploits.

In fact, one case of this appeared according to a CNET article detailing that “the Philadelphia-area school district sued for remotely and secretly taking pictures of students at

home via laptop Webcams has agreed to pay \$610,000 to settle the lawsuits.” The articles continue in saying that Robbins a 15-year-old high school student had thousands of shots taken of them partially undressed and sleeping.

Webcams in School Laptops

Given the above, we can draw the conclusion that the stakeholders are everyone as no one must benefit from this situation and everyone are impacted. The possible consequences hurt the reputation/trust of the company we would be overseeing to customers, personally hurt the students, parents and faculty involved and lastly hurt valuable trust with between the school and homes. Additionally, in this case laws enforce ethics as it would be the most ethical to have prudent communication with school administration.

For instance, looking deeper into the consumer of the software such as with staff would allow you to collect information on previous agreement on certain privacy rights that might have been signed away. If the consumer is the students, then their parents would have to be involved. Even if such a deal would be pulled back for the sake of others personal security not being breached and to keep trust between all parties would be the optimal outcome. Therefore, this puts school administration and parents as the decision makers as we would inform them of this software’s applications and functions which they may need more clarity on. It is very important to be well informed, but also to keep stakeholders also informed presenting your company to be familiar with the risk their product holds, but also understanding of the customers benefits and ultimately their needs.

There may even be alternative options such as security features in the software application or different software without remote access that could be compromised. There may

even be an option to split the installation of such software to be different between staff and students if applicable. Any kind of decision that focus on the elimination or having minimum security standards would be best. This ensures that the prioritized responsibilities of the decision-makers, being the safety and security of students, is respected and greatly fulfilled in partnership with the company's software.

In conclusion, the most ethical decision enforced by the law, would be to communicate effectively with school administration and parents to ensure certain features that could invade privacy are recognized and the most optimal solutions can be made. Solutions that consider the full scope of legal matters, civil rights, financial means and reputation.

References:

Baase, Sara, and Timothy Henry. “Webcams in School Laptops (Pg.415).” *A Gift of Fire: Social, Legal, and Ethical Issues for Computing Technology*, Pearson, NY, NY, 2019, pp. 415–416.

Moyer, Edward. “School District Settles Webcam Privacy Case.” *CNET*, CNET, 13 Oct. 2010, <https://www.cnet.com/news/privacy/school-district-settles-webcam-privacy-case/>.

“Privacy Act of 1974.” *The United States Department of Justice*, U.S. Department of Justice, 30 Apr. 2021, <https://www.justice.gov/opcl/privacy-act-1974>.

Professional Practices

Academic Integrity

In order for your Assignment/Homework/Project to be accepted you must read the following, sign this form and attach it to your papers (as the last page of your assignment).

Academic Integrity: Students enrolled in this course are expected to adhere to the UT Arlington Honor Code:

I pledge, on my honor, to uphold UT Arlington's tradition of academic integrity, a tradition that values hard work and honest effort in the pursuit of academic excellence.

I promise that I will submit only work that I personally create or contribute to group collaborations, and I will appropriately reference any work from other sources. I will follow the highest standards of integrity and uphold the spirit of the Honor Code.

Student Signature: Jeremiah Richard

Student Id Number: 1001475742

Note: Must be read, signed and attached (stapled) as last page of homework or assignment. If it is a team assignment then all team members must read, sign and attach a single copy of the Academic Integrity form to the team's paper as the last page. If not properly attached as last page a 2 point penalty will be assessed after grade assigned.